



SPONSOR: Sen. Pinkney & Rep. Chukwuocha
Reps. Gorman, Neal

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 104

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO TRAUMA KITS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as
2 shown by underline as follows:

3 Chapter 30R. Trauma Kits.

4 § 3001R. Findings and purpose.

5 The General Assembly finds that it is in the best interest of the people of this State to require certain buildings with
6 a high occupancy rate to maintain access to trauma kits in order to provide immediate emergency care to people
7 experiencing trauma.

8 § 3002R. Definitions.

9 As used in this chapter:

10 (1) “Chest seal” means a bandage used by trained first responders to treat a penetrating wound to the
11 chest, neck, or abdomen. A trauma kit must not contain a chest seal within the kit.

12 (2) “Trauma kit” means a first aid response kit that must contain all of the following:

13 a. One tourniquet endorsed by the Committee on Tactical Combat Casualty Care.

14 b. One bleeding control bandage.

15 c. One pair of nonlatex gloves and a marker.

16 d. One pair of scissors.

17 e. Instructional documents developed by the Stop the Bleed national awareness campaign of the
18 United States Department of Homeland Security or the American College of Surgeons Committee on
19 Trauma, the American Red Cross, the Committee for Tactical Emergency Casualty Care, or any other
20 partner of the United States Department of Defense.

21 (3) “Work area” means an area in a place of employment where 50 or more people are routinely on site.

22 § 3003R. Use and maintenance of trauma kits.

In order to ensure public safety, any person or entity that supplies a trauma kit shall provide the person or entity that acquires the trauma kit with all information governing the use and maintenance of the trauma kit.

§ 3004R. Trauma kits required.

(a) Except as provided in § 3005R of this title, this chapter applies to all of the following buildings:

(1) Grocery stores.

(2) Gymnasiums.

(3) Courthouses.

(4) Child day care facilities.

(5) Health-care facilities including hospitals, health care clinics, doctor's offices or other health-care-related facilities.

(6) Any building that is a work area.

(7) Restaurants as licensed by the Division of Public Health or defined by Title 4.

(8) Gaming facilities that are open to the public.

(9) Apartment buildings, condominiums, and other multiple-unit residential facilities.

(10) Any indoor or outdoor sports arena.

(11) Any hotel or motel.

(12) Bowling alleys.

(13) Billiard or pool halls.

(14) Retirement facilities and nursing homes that are not private residences.

(15) Public buildings as defined in § 2902 (9) of this title.

(16) Auditoria.

(17) Theaters.

(18) Museums.

(19) Libraries.

(20) Public and nonpublic schools.

(21) Educational and vocational institutions.

(22) Establishments defined as a motorsports speedway, tavern, or taproom by Title 4.

(b) A person or entity that complies with subsection (c) of this section is not liable for any civil damages resulting from any acts or omissions in the rendering of emergency care by use of a trauma kit.

(c) In order to ensure public safety, the person or entity responsible for managing the building, facility, and tenants of any structure described in subsection (a) of this section shall do all of the following:

(1) Acquire and place at least 6 trauma kits on the premises of the building or facility that are located in a clearly visible, centrally located, and easily accessible area.

(2) Inspect all trauma kits acquired and placed on the premises of a building or structure once every year from the date of installation to ensure that all materials, supplies, and equipment contained in the trauma kit are not expired, and replace any expired or missing materials, supplies, and equipment as needed.

(3) If a property managing entity or person is aware, or reasonably should be aware, that a trauma kit has been used, they shall restock the trauma kit after each use and replace any materials, supplies, and equipment as necessary to ensure that all materials, supplies, and equipment required to be contained in the trauma kit are contained in the trauma kit.

(4) At least once per year, notify tenants of the building or structure of the location of the trauma kits and provide information to tenants regarding contact information for training in the use of the trauma kit. For purposes of complying with this notification requirement, property managers may direct tenants to the Stop the Bleed national awareness campaign of the United States Department of Homeland Security or the American College of Surgeons Committee on Trauma, the American Red Cross, the Committee for Tactical Emergency Casualty Care, or any other partner of the United States Department of Defense or reputable providers. The property manager is only required to identify one potential source of training but may choose to identify multiple sources of training.

§ 3005R. Exemptions.

This chapter shall not apply to private homes, private residences, or private vehicles.

§ 3006R. Implementation.

(a) The Department of Labor shall adopt rules and regulations to implement the provisions of this chapter as it applies to employees, employers, places of employment, and the work place.

(b) The Department of Health and Social Services shall adopt rules and regulations to implement the provisions of this chapter not affecting the work place.

§ 3007R. Administrative penalties.

(a) Any person who violates any provision of this chapter or any rule or regulation promulgated under this chapter shall be fined an administrative penalty of \$100 for a first violation and not less than \$250 for each subsequent violation.

Section 2. Amend Chapter 68, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

82 § 6804. Use of trauma kits.

83 For purposes of this subchapter, use of a trauma kit as defined in §3002R of this title is considered emergency care
84 or treatment for purposes of sections §§ 6801 and 6802 of this title.

85 Section 3. This Act shall become effective 180 days upon enactment into law.

SYNOPSIS

Access to a trauma kit to stop bleeding is a vital first aid tool that can save lives in emergency situations where people are exposed to or may be exposed to traumatic circumstances. This Act defines what a trauma kit is and requires the managing entities of certain buildings acquire and place at least 6 trauma kits in a clearly visible, centrally located, and accessible area. The Act further requires the property managing entity or person to ensure the kits are appropriately placed and replaced if needed. The property managing entity or person must also send notification to tenants of the building regarding the locations of the trauma kits and instructions on how to use them. This Act does not apply to private homes, residences, or vehicles.

The Department of Labor and the Department of Health and Social Services must adopt rules and regulations pertaining to the bill. Any person who violates this Act would be subject to fines of \$100 for the first violation and \$250 for any subsequent violations.

Use of a trauma kit in an emergency care situation is protected from civil liability pursuant to §§ 6801 and 6802 of Title 16.

This Act becomes effective 180 days upon enactment.

Author: Senator Pinkney